

was not operational. The remaining cameras were either non-functional or outdated, which impeded the effective monitoring of the area.”

3. Considerations

The Authority, having examined the documentation and the information provided by the Municipality and the Company, notes that the installation of video surveillance systems must comply with the principles of necessity and proportionality as established by the Regulation and the Code. The use of such systems for the purpose of preventing and combating illegal waste disposal must be justified by a clear assessment of the effectiveness of the measures taken and the actual need for surveillance in the specific areas concerned.

4. Conclusion

In light of the above, the Authority finds that the Municipality of Modica, in its decision to install video surveillance systems, did not adequately assess the necessity and proportionality of such measures in relation to the specific context of waste management. The lack of a proper operational framework and the failure to ensure that the systems were functional at the time of their deployment raises significant concerns regarding compliance with data protection regulations.

5. Orders

Therefore, the Authority orders the Municipality of Modica to:

- Conduct a thorough review of the video surveillance systems in place, ensuring that they meet the requirements of necessity and proportionality.
- Provide a detailed report on the current status of the video surveillance systems, including the number of operational cameras and their functionality.
- Implement corrective measures to ensure compliance with data protection regulations, including the establishment of clear protocols for the processing of personal data collected through these systems.

This decision is communicated to the Municipality of Modica and is subject to appeal in accordance with the applicable legal provisions.

Done in Rome, on 18 July 2023

IL GARANTE PER LA PROTEZIONE DEI DATI PERSONALI

[Signature]

Prof. Pasquale Stanzone

President

possible only through memory cards installed on the individual cameras; therefore, it was necessary to remove and transfer the aforementioned cards to proceed with the extraction and analysis of the images recorded on them”;

- “however, the Municipality [...] and the Command of the Municipal Police of Modica, in a completely urgent and exceptional manner, found it necessary to monitor the areas covered by the 5 functioning cameras (which were used alternately, each for 2 days, according to the directives issued by the Municipality [...] and/or by the Municipal Police of Modica), to suppress events far more serious than the administrative offenses mentioned above: namely, cases punishable by arrest, such as those referred to in Article 256 of Legislative Decree No. 152/2006, for unauthorized waste management, frequent incidents of vandalism carried out through damage, theft, and/or arson of garbage bins, and even incidents of vandalism and arson involving some municipal vehicles engaged in waste management. Therefore, the Command of the Municipal Police of Modica proceeded with the almost simultaneous appointment of Ermeslink as an auxiliary of the Public Prosecutor (which took place on XX) to immediately start the video surveillance service, albeit only limited to the 5 functioning cameras and using them alternately, also considering the fact that the Municipal Police lacks the necessary technical skills for extraction, preservation, and analysis of the images recorded by the cameras. Moreover, Ermeslink, in absolute good faith, believed that such an appointment as an auxiliary of the Public Prosecutor could be equated to that of “data controller” [...];

- “Ermeslink acted in absolute good faith, believing that its appointment as an auxiliary of the Public

Prosecutor was comparable to that of “external data controller” for data processing and, in any case, could derogate from the Regulation [...] and [the Code]”;

- “the functioning cameras at the time of the events were only 5, which were used alternately and in rotation, 2 at a time and only for 2 days”;
- “the system remained operational for only a very short period (about 15/20 days) after which the Municipality [...], perhaps also following the aforementioned report to the Authority, requested Ermeslink to deactivate the 5 functioning cameras and to temporarily suspend the service”;
- “it is believed that the purposes of “public safety” mentioned above, aimed at ensuring the investigative activity of the Municipal Police, legitimize the processing of data in derogation of the current regulations, through the appointment of Ermeslink as an auxiliary of the Public Prosecutor [...]”.

Taking into account the aforementioned circumstances in which the Company operated, it has emerged from the documents that starting from the date on which it took over the management of the video devices in question (XX), until the date on which the relationship with the Municipality for the purposes of data protection regulations was formally regulated pursuant to Article 28 of the Regulation (see Mayor's determination No. XX of XX), the processing of personal data of the interested parties occurred without the role of the Company, as data processor, being appropriately defined.

Therefore, since the Company and the Municipality did not enter into an “agreement” on data protection during that period and no other grounds were identified by the Company that could legitimize the processing of the personal data in question, the Office, with a note dated XX (prot. No. XX), based on the acquired elements, notified the Company, pursuant to Article 166, paragraph 5, of the Code, of the initiation of proceedings for the adoption of measures referred to in Article 58, paragraph 2, of the Regulation, concerning the alleged violations of Articles 5, paragraph 1, letter a), and 6 of the Regulation (in conjunction with Article 2 ter of the Code), for having carried out the processing of personal data in a manner not compliant with the principle of “lawfulness, fairness, and transparency” and in the absence of an appropriate legal basis.

With the same note, the Company was invited to submit defensive writings or documents to the Authority or to request to be heard by the Authority (Article 166, paragraphs 6 and 7, of the Code, as well as Article 18, paragraph 1, of Law No. 689 of November 24, 1981).

In a note dated XX, the Company, referring to what had already been stated in the aforementioned note dated XX, declared, among other things, that:

- “the actual period of the contested irregularity does not correspond to the entire interval from 04.03.2020 to 12.08.2020, but only to the 15/20 days of actual operation of the video surveillance system”;
- “Ermeslink acted in absolute good faith, believing its appointment as an auxiliary of the Public Prosecutor to be equivalent and comparable to that of “external data controller” or, in any case, legitimate even if in derogation of the current regulations”;
- “the data was processed solely and exclusively by Mr. [...], while no other employee and/or staff member of Ermeslink had access to it, in compliance with the appointment as an auxiliary of the Public Prosecutor”;
- “Ermeslink did not operate independently in the processing of the sensitive data collected, but under the directives given by the Municipality [...] and the Command of the Municipal Police of the Municipality [...], precisely as an auxiliary of the latter”;
- “Ermeslink nonetheless respected all other principles related to the processing of the sensitive data collected, without replicating, disseminating, or retaining them beyond the terms set by the Municipality [...] and, in any case, using the collected data only for the purposes for which they were recorded at the request of the Entity and the Police Authority”;
- “the service for the aforementioned short period was

****Resolution only with 5 cameras, used alternately (each for 2 days), according to the directives issued always by the Municipality [...] and/or by the Municipal Police of Modica and has only involved some very limited areas of the municipal territory****;

- “[...] in accordance with Article 32 of the [Regulation], has always maintained high qualitative parameters related to the security of networks and infrastructure, activating a series of measures aimed at ensuring the confidentiality and integrity of the sensitive data collected from its customers [...]”.

****3. Outcome of the Investigative Activity****

Pursuant to the regulations on the protection of personal data, the processing of personal data carried out by public entities (such as the Municipality of Modica) is lawful only if necessary “to comply with a legal obligation to which the data controller is subject” or “for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller” [Article 6, paragraph 1, letters c) and e)]. The management of municipal solid waste falls within the institutional activities entrusted to local authorities. However, even in the presence of a condition of lawfulness, the data controller is required to comply with the principles regarding data protection (Article 5 of the Regulation).

****3.1 The Processing Carried Out by the Company****

Pursuant to Article 28 of the Regulation, the data controller (as mentioned above, the Municipality of Modica) may entrust processing to third parties who provide sufficient guarantees regarding the implementation of appropriate technical and organizational measures to ensure that the processing is compliant with the regulations on the protection of personal data (“data processors”).

The relationship between the data controller and the processor is governed by a contract or other legal act, executed in writing, which, in addition to mutually binding the two parties, allows the data controller to issue instructions to the processor and specifies in detail the subject matter governed, the duration, the nature and purposes of the processing, the type of personal data and categories of data subjects, the obligations and rights of the data controller. The Data Processor is therefore authorized to process the data of the data subjects “only on documented instructions from the data controller” (Article 28, paragraphs 1 and 3 of the Regulation).

As emerged during the investigation, the processing of the data in question, carried out by the Company on behalf of the Municipality, was initiated without the role being regulated pursuant to Article 28 of the Regulation, as the act of appointing the company as “auxiliary of PG” does not meet the characteristics of the legal act intended to regulate the relationship with the Processor, lacking the elements required by Article 28 of the Regulation.

Since it was not identified as the data processor and no specific conditions were indicated by the company that legitimized the processing of personal data, it must be concluded that the processing was carried out in the absence of lawful conditions and therefore in violation of Articles 5, paragraph 1, letter a) and 6 of the Regulation (in conjunction with Article 2 ter of the Code, as an unlawful communication of data has also occurred), as previously clarified by the Guarantor regarding similar cases (see decision no. 161 of September 17, 2020, web doc. 9461321; decision no. 281 of December 17, 2020, web doc 9525315; decision no. 292 of July 22, 2021, web doc. 9698558; decision no. 269 of July 21, 2022, web doc. 9813326; decision no. 293 of July 22, 2021, web doc. 9698597; Guidelines “on the concepts of data controller and data processor in the GDPR” no. 07/2020, particularly note 35).

****4. Conclusions****

In light of the evaluations mentioned above, it is noted that the statements made by the company in the defense writings – the veracity of which may be subject to accountability pursuant to Article 168 of the Code – although deserving of consideration, do not allow for overcoming the objections notified by the Office with the initiation of the procedure and are insufficient to allow for the archiving of the present procedure, as none of the cases provided for by Article 11 of the Guarantor Regulation no. 1/2019 apply.

From the checks carried out based on the elements acquired, also through the documentation sent by the company, as well as from subsequent evaluations, the non-compliance of the processing carried

out on behalf of the Municipality of Modica concerning the management of the video surveillance system has been established.

The violation of personal data, subject to the investigation, occurred during the full validity of the provisions of the Regulation and the Code, as amended by Legislative Decree no. 101/2018, and therefore, for the purpose of determining the applicable regulatory framework from a temporal perspective (Article 1, paragraph 2, of Law November 24, 1981, no. 689), these constitute the provisions in force at the time of the committed violation, which occurred starting from March 2020. Therefore, the preliminary assessments of the Office are confirmed, and the unlawfulness of the processing of personal data carried out by the company is noted, as it occurred in the absence of a condition of lawfulness and, therefore, in a manner not compliant with the principle of "lawfulness, fairness, and transparency," in violation of Article 5, paragraph 1, letter a) of the Regulation and Article 6 of the Regulation (in conjunction with Article 2 ter of the Code).

The violation of the aforementioned provisions makes the administrative sanction applicable pursuant to Articles 58, paragraph 2, letter i), and 83, paragraphs 4 and 5, of the same Regulation, as also recalled by Article 166, paragraph 3, of the Code.

5. Adoption of the injunction order for the application of the administrative pecuniary sanction and accessory sanctions (arts. 58, par. 2, lett. i and 83 of the Regulation; art. 166, par. 7, of the Code).

The Guarantor, pursuant to arts. 58, par. 2, lett. i), and 83 of the Regulation as well as art. 166 of the Code, has the power to "impose an administrative pecuniary sanction pursuant to article 83, in addition to the [other] [corrective] measures referred to in this paragraph, or in lieu of such measures, depending on the circumstances of each individual case" and, in this context, "the Board [of the Guarantor] adopts the injunction order, which also provides for the application of the accessory administrative sanction of its publication, in whole or in part, on the Guarantor's website pursuant to article 166, par. 7, of the Code" (art. 16, par. 1, of the Regulation of the Guarantor no. 1/2019).

In this regard, in the specific case, the violation of the aforementioned provisions is subject to the application of the same administrative pecuniary sanction provided for by art. 83, par. 5, of the Regulation.

The aforementioned administrative pecuniary sanction imposed, depending on the circumstances of each individual case, must be determined in amount, taking due account of the elements provided for by art. 83, par. 2, of the Regulation.

For the purposes of applying the sanction, it has been considered that the processing involved the data potentially of all residents of the Municipality of Modica (approximately 53,000 affected) and non-residents (the extent of which is not quantifiable), in violation of the principle of "lawfulness, fairness, and transparency" as per art. 5, par. 1 lett. a) of the Regulation and in the absence of a condition of lawfulness in violation of art. 6 of the Regulation (in conjunction with art. 2 ter of the Code).

On the other hand, it is considered that the company operated, processing personal data on behalf of the Municipality, in the absence of a valid contract or other legal act pursuant to art. 28 of the Regulation for a short period (approximately 6 months); it is also noted the non-willful nature of the violation as well as the absence of previous violations against the company.

In light of the aforementioned elements, evaluated in their entirety, it is deemed necessary to determine pursuant to art. 83, par. 2 and 3, of the Regulation the amount of the pecuniary sanction, provided for by art. 83, par. 5, lett. a) of the Regulation, in the amount of euro 5,000 for the violation of arts. 5 and 6 of the Regulation (in conjunction with art. 2 ter of the Code) as an administrative pecuniary sanction deemed effective, proportionate, and dissuasive pursuant to art. 83, par. 1, of the same Regulation.

It is considered that the accessory sanction of publication on the Guarantor's website of this provision, provided for by art. 166, par. 7 of the Code and art. 16 of the Regulation of the Guarantor no. 1/2019, should be applied.

Finally, it is believed that the conditions referred to in art. 17 of Regulation no. 1/2019 are met.

ALL OF THE ABOVE CONSIDERED, THE GUARANTOR

pursuant to art. 57, par. 1, lett. a) and f) of the Regulation, notes the unlawfulness of the processing carried out by the individual enterprise Ermeslink of Giovanni Di Stefano for the violation of arts. 5, par. 1, lett. a) and 6 of the Regulation (in conjunction with art. 2 ter of the Code), as stated in the reasoning;

ORDERS

the individual enterprise Ermeslink of Giovanni Di Stefano, with registered office at via Passogatta n. 33, 97015, Modica (RG) - VAT number 06040360486 – to pay the sum of euro 5,000 as an administrative pecuniary sanction for the violations mentioned in the reasoning; it is stated that the offender, pursuant to art. 166, par. 8, of the Code, has the option to settle the dispute by payment, within 30 days, of an amount equal to half of the imposed sanction;

COMMANDS

the individual enterprise Ermeslink of Giovanni Di Stefano to pay the sum of euro 5,000 – in case of failure to settle the dispute pursuant to art. 166, par. 8, of the Code, according to the methods indicated in the annex, within thirty days from the notification of this provision, under penalty of the adoption of the consequent executive acts pursuant to art. 27 of Law no. 689/1981;

DISPOSES

the publication of this provision on the Guarantor's website, pursuant to art. 166, par. 7, of the Code and art. 16, par. 1, of the Regulation of the Guarantor no. 1/2019;

the annotation of this provision in the internal register of the Authority, provided for by art. 57, par. 1, lett. u), of the Regulation, of the violations and measures adopted in accordance with art. 58, par. 2, of the Regulation.

Pursuant to art. 78 of the Regulation, arts. 152 of the Code, and 10 of Legislative Decree no. 150/2011, against this provision it is possible to appeal before the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Rome, July 18, 2023

THE PRESIDENT

Stanzione

THE REPORTER

Ghiglia

THE SECRETARY GENERAL

Mattei